

**Superior Court of the State of California
County of Orange**

TENTATIVE RULINGS FOR DEPARTMENT C21

JUDGE CRAIG E. ARTHUR

Date: September 11, 2026

The court will endeavor to post tentative rulings on the Court's website by 4:00 p.m. on the day before the Law and Motion Calendar. However, ongoing proceedings may prevent posting by that time. Please do not call the department for tentative rulings if none are posted. The court will not entertain a request for continuance once a tentative ruling has been posted and no additional papers will be considered once a tentative ruling has been posted.

If all parties agree to submit on the Court's tentative rulings, please call the Court Clerk to inform the court that all parties submit on the Court's tentative ruling (657-622-5221). The tentative ruling will then become the order of the Court.

The Law and Motion Calendar is typically heard on Fridays at 10 a.m., unless otherwise noted. All arguments will be heard at that time. Unless otherwise indicated in the tentative ruling, the prevailing party will give Notice of Ruling. If no one appears for the hearing, the court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

APPEARANCES: The Court offers remote appearances for the Law and Motion Calendar via Zoom. All counsel and self-represented parties appearing remotely for the Law and Motion Calendar must check-in online through the Court's website at <https://www.occourts.org/civil-remote-hearings> , and then click on Department C21 (to check-in). The Court's "Civil Desktop Remote Appearance Video," an instructional video, is available through the Court's website at [Civil Desktop Remote Appearance Video](#), and the Court's "Civil Mobile Application Remote Appearance Video" is available through the Court's website at [Civil Mobile Application Remote Appearance Video](#). If you encounter difficulty checking-in online or connecting remotely, please call Department C21 for assistance at (657) 622-5221. Counsel and self-represented parties preferring to appear in-person may do so.

COURT REPORTERS: Official court reporters (i.e. court reporters employed by the Court) are NOT typically provided for law and motion matters in this department. Please see the Court's website for further information. The Court's policy on privately-retained court reporters is available on the Court's website at: [Privately-Retained Court Reporter Policy](#).

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
50	<i>Off calendar</i>	
51	<i>Hernandez vs. Free Dry Laundromat</i>	Timothy Dominguez, Esq.'s motion to be relieved as counsel for Plaintiff Raquel Hernandez is granted. Upon the court's signing of the order, counsel shall serve said order on all parties who have appeared (if any) as well as Ms. Hernandez. Timothy Dominguez, Esq. will be relieved as counsel of record for Plaintiff effective upon the filing of the proof of service of the signed order upon the parties. Mr. Dominguez shall give notice of the ruling.
52	<i>Ignatius vs. Ignatius</i>	The motion of defendants Stephen Ignatius (in all capacities), Thomas Rieser (in all capacities), Kirsten Rieser (in all capacities), Monica Solorzano and Villela, Inc. for attorneys' fees and costs pursuant to Code of Civil Procedure section 425.16(c) is granted. [ROA #85.] Defendants are awarded \$28,305 in fees and \$60 in costs. General Law Subject to exceptions not relevant here, a defendant who brings a successful special motion to strike is entitled to mandatory attorney fees and costs. (Code Civ. Proc., § 425.16, subd. (c)(1); <i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1131.) Fee awards under Section 425.16 are to be calculated using the lodestar method. (<i>Ketchum v. Moses, supra</i>, 24 Cal.4th at p. 1136.) Accordingly, the court must begin by determining the number of hours reasonably expended multiplied by the

attorneys' reasonable hourly rate. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The resulting figure may then be adjusted, based on considerations of factors specific to the case, to fix the fee at the fair market value for the legal services provided. Under this rule, "the court must consider the significance of the overall relief obtained by the prevailing party in relation to the hours reasonably expended on the litigation and whether the expenditure of counsel's time was reasonable in relation to the success achieved." (*Mann v. Quality Old Time Service, Inc.* (2006) 139 Cal.App.4th 328, 344.) "[A]ny failure to maintain appropriate time records sufficient to provide a basis for determining how much time was spent on particular claims" properly permits reduction of the award. (*Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1320, overruled on other grounds in *Equilon Enterprises v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 68, fn. 5.) The court has broad authority to determine the amount of reasonable fees. (*PLCM Group, Inc. v. Drexler, supra*, 22 Cal.4th, at p. 1095.)

Merits

As prevailing parties on a special motion to strike that disposed of meaningful parts of the Complaint, Moving Defendants are entitled to an award of attorney's fees. (See *Mann v. Quality Old Time Service, Inc., supra*, 139 Cal.App.4th at p. 340 [defendants who successfully eliminated trade libel cause of action "prevailed" although defamation claim remained in the litigation.]

		Defense counsel's hourly rates of \$325 and \$775 are within the prevailing market rate for similar work and are reasonable. Defense counsel provided billing records to support the fees and costs sought in this motion. (Radcliffe Decl., Exh. 3.) Plaintiff filed an objection to Defendants' fee request but does not identify any specific time entries as excessive, duplicative, or not recoverable. From the court's review of the hours and work done, however, the court has reduced the amount of attorney's fees and costs for inter-office communications and excessive time. Moving Defendants are awarded \$28,305 in reasonable attorney's fees and \$60 in costs. Defendants are to provide notice of this ruling.
53	<i>Khamisi vs. Villa Valencia Healthcare Center</i>	<i>Motion is off calendar.</i> <i>Case Management Conference remains on calendar.</i>
54	<i>LaCour vs. GJG Holdings LLC</i>	Defendant Gator Greenwill's Motion to quash Plaintiff Chris Lacour's Complaint for lack of personal jurisdiction is denied. First, the Motion is not timely noticed. Absent an order shortening time, the hearing date specified in the notice must allow for service and filing of the moving papers in compliance with CCP § 1005: i.e., at least 16 court days before the hearing, plus additional time for service by mail (or by fax, email or overnight delivery); (See <i>Demyer v. Costa Mesa Mobile Home Estates</i> (1995) 36 Cal.App.4th 393, 401, fn. 18 (citing text))

	(disapproved on other grounds by <i>Wilcox v. Birtwhistle</i> (1999) 21 Cal.4th 973.) Here, the Motion was filed and electronically served on August 19, 2026. This provides insufficient time before the September 11, 2026, hearing date. (ROA 106, 108.) Second, Defendant made a general appearance in this case on June 26, 2026, prior to filing the instant Motion. (ROA 85.) Personal jurisdiction may be asserted over nonresident defendants who make a general appearance in the action, thereby dispensing with the necessity of personal service: “A general appearance by a party is equivalent to personal service of summons on such party.” (CCP § 410.50(a); see <i>Fireman's Fund Ins. Co. v. Sparks Const., Inc.</i> (2004) 114 Cal.App.4th 1135, 1145—by making general appearance, defendant forfeits any objection to defective service even if unaware such objection was available.) A general appearance is participation in the action in a manner that recognizes the court's jurisdiction before filing a motion to quash: “If the defendant raises an issue for resolution or seeks relief available only if the court has jurisdiction over the defendant, then the appearance is a general one.” (<i>Factor Health Mgmt. v. Sup.Ct. (Apex Therapeutic Care, Inc.)</i> (2005) 132 Cal.App.4th 246, 250; <i>Mt. Holyoke Homes, LP v. California Coastal Comm'n</i> (2008) 167 Cal.App.4th 830, 844—participating in action “in some manner which recognizes the authority of
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	the court to proceed”; see CCP § 1014 (nonexclusive list of acts constituting “appearance”).] If the motion is timely made first, no subsequent act by the party making such motion, “including filing an answer, demurrer, or motion to strike,” shall be deemed a general appearance. (CCP § 418.10(e)(1); see <i>Szynalski v. Sup.Ct. (Rosenthal & Co., LLC)</i> (2009) 172 CA4th 1, 8, fn. 2.) “A general appearance occurs where a party, either directly or through counsel, participates in an action in some manner which recognizes the authority of the court to proceed.” (<i>Mansour v. Superior Court</i> (1995) 38 Cal.App.4th 1750, 1756.) The appellate court explained, “The case management evaluation procedure is intended to expedite the resolution of lawsuits by allowing the trial court to establish a schedule for discovery and law and motion matters, set a mandatory settlement conference and trial date and consider the possibility of using alternative dispute resolution methods. [Citation.] The process is thus premised on the trial court having jurisdiction over the parties participating in it. Askew and Cellini's responses on the case management statement and their active participation in the evaluation conference constitute a general appearance in the case. The mere fact Askew and Cellini had previously moved to quash service under Code of Civil Procedure section 418.10 and petitioned this Court to overturn the denial of their motions did
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		not grant them immunity from making a general appearance by their subsequent participation in the litigation.” (<i>Ibid.</i>) A general appearance is not determined by how the party who made the appearance describes it, or intended it, but rather by “the character of the relief sought.” (<i>Slaybaugh v. Superior Court</i> (1977) 70 Cal.App.3d 216, 221.) On June 26, 2026, Defendant appeared in pro per at a Case Management Conference. (ROA 85.) He did not state he was specially appearing or that he objected to the Court’s exercise of personal jurisdiction over him. (ROA 85; Buus Decl., ¶ 3.) He introduced himself and stated that he believed the case should be consolidated with other related cases and expressed a desire to mediate the dispute. (<i>Ibid.</i>) Thus, Defendant has submitted to this Court’s jurisdiction. The Motion is denied. Defendant Greenwill is to give notice of this ruling.
55	<i>Moore vs. Bodega Latina Corporation</i>	Defendant Chedraui USA, Inc.’s unopposed Motion to Deem Requests for Admissions to plaintiff Zachary Moore Admitted is GRANTED. CCP §2033.280(c) The court “shall make the order” deeming admissions admitted under CCP §2033.280(c), unless it finds that responses have been served before the hearing of the motion for an order deeming the admissions admitted. Plaintiff has made no showing he served responses. In

		addition, Plaintiff has not filed an opposition to this motion. The motion is granted. Moving party shall give notice.
56	<i>Noori vs. Sequoia Equities, Inc.</i>	Defendant Sequoia Equities, Inc.’s motion to strike punitive damage allegations and prayer (paras. 36, 60, 68, 99 and prayer items 4, 10, 13, 21) from the complaint of plaintiff Frank Noori, Chamaiporn Noppakovat and Eva Noori, by and through her guardian ad litem is granted with leave for Plaintiffs to bring a motion to amend their complaint to add punitive damages when and if they discover sufficient facts to do so. [ROA # 24.] Plaintiffs’ Complaint Plaintiffs have sued not only moving Defendant but Paloma Summit Apartments and Does 1-50. [Id.] Plaintiffs have named Doe 1 as Sequoia Equities - Paloma, a California limited liability partnership and Doe 2 as Trinity Terrace Associates LP, a California limited liability partnership. [ROA ## 33, 31.] Both Defendant Sequoia Equities and defendant Paloma Summit Apartments are alleged to be “the owner and/or property manager” of the property. [Complaint, ¶¶ 5-6.] Plaintiffs allege that at all relevant times herein, Defendants had actual and/or constructive notice of the following defects and issues yet failed to take timely or reasonable steps to abate and/or

	remedy them. Any repairs that were undertaken by Defendants were inadequate and/or exacerbated the subject problem. Defendants failed to repair and abate the defects and issues at the Apartment and the Property to save money and increase Defendants' cash flow and net income. [Complaint, ¶ 13.] Plaintiffs then list the following: severe vermin infestation, Plaintiffs' complaint to the Orange County Health Care Agency, defective front entry door, defective window screens, inoperable and defective appliances, plumbing and toilet malfunctions, defective smoke detector and fire safety violations, defective and leaking air conditioning unit, and unsanitary and infested common area. [Id.] For several of these items Plaintiffs allege that "Plaintiffs" documented their complaints or otherwise informed "Defendants", but "Defendants" failed to "properly" or "legitimately" or "timely" repair or abate the problem. [Id.] In October of 2025, Plaintiffs allege they were forced to vacate the Property due to health issues from living at the Property. Defendants constructively evicted Plaintiffs from the Property by refusing to make the required repairs to the Property and ensuring the Property was safe and habitable, especially after Plaintiffs told Defendants repeatedly of their health issues and concerns that the conditions of his Apartment were making them sick. All of the constant complaints and documentation of the uninhabitable conditions in their Apartment fell
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	on deaf ears and they were forced to live in these conditions for months. [Complaint, ¶ 15.] Legal Standard A court may strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule or an order of the court. Code Civ. Proc. §436. “Irrelevant” matters include: allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not support by the allegations of the complaint. Code Civ. Proc. §431.10(b). A motion to strike is limited to the face of the complaint, including matters that may be judicially noticed. Code Civ. Proc. §437(a). Civil Code section 3294 provides that punitive damages may be awarded in an action for breach of an obligation not arising from contract, if the plaintiff proves by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. “Malice” means conduct that is intended to cause injury or despicable conduct that is carried on with a willful and conscious disregard of the right and safety of others. Civ. Code §3294(c)(1). “Oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. Civ. Code §3294(c)(2).
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	At the pleading stage, the complaint must allege facts supporting circumstances of oppression, fraud, or malice. See <i>Grieves v. Superior Court</i> (1984) 157 Cal.App.3d 159, 166 (“The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. [Citation] Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim. [Citation].”). A corporate defendant may not be liable for punitive damages based on the acts of its employees unless the plaintiff alleges and proves that an officer, director or managing agent of the corporation: (1) was personally guilty of oppression, fraud or malice; or (2) had advance knowledge of, authorized, or ratified the wrongful conduct for which the damages are awarded. Civ. Code §3294(b). The same liberal policy regarding amendments that applies to the sustaining of demurrers applies for motions to strike. If a defect may be correctible, leave to amend should usually be given. <i>Grieves v. Superior Court, supra</i>, 157 Cal.App.3d at 168. In <i>Taylor v. Superior Court</i> (1979) 24 Cal. 3d 890, the California Supreme Court ruled that nonintentional torts may form the basis for punitive damages when the conduct constitutes a conscious disregard of the rights or safety of others. <i>Id.</i> at 896-96. The plaintiff must establish, however, that the defendant was aware of the probably dangerous consequences of his conduct, and that he willfully and deliberately failed to
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	avoid those consequences. <i>Id.</i> at 895-96. In Taylor, the defendant was intoxicated; he hit another car and injured the other driver. <i>Id.</i> at 893. The Legislature then added the “despicable” requirement for non-intentional malice claims under §3294. <i>Lackner v. North</i> (2006) 135 Cal.App.4th 1188, 1210 (racing at a high rate of speed did not alone demonstrate malice, particularly where defendant showed some effort to avoid impact.) As amended to include this word, the statute plainly indicates that absent an intent to injure the plaintiff, ‘malice’ requires more than a ‘willful and conscious’ disregard of the plaintiffs’ interests. The additional component of ‘despicable conduct’ must be found.” (<i>College Hospital, supra</i>, 8 Cal.4th at p. 725, 34 Cal.Rptr.2d 898, 882 P.2d 894.) <i>Butte Fire Cases</i> (2018) 24 Cal.App.5th 1150, 1161. Plaintiffs’ basis for punitive damages is Defendant’s alleged knowledge of the dilapidated and unhealthy condition of the unit and the adverse health effects this was having on Plaintiffs and its refusal or failure to remedy that condition in conscious disregard of the effect on Plaintiffs and of their rights. This is an element of malice or oppression under the statute. Civ. Code §3294(c)(1) and (2). Under both, the conduct must be despicable. <i>Id.</i> Plaintiffs also accuse Defendant of failing and refusing to repair the premises to save money.
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	They allege on information and belief but do not allege on what facts they base this accusation. [Complaint, ¶ 13.] See <i>Gomes v. Countrywide Home Loans, Inc.</i> (2011) 192 Cal.App.4th 1149, 1158–1159 (“a pleading made on information and belief is insufficient if it merely assert[s] the facts so alleged without alleging such information that lead[s] [the plaintiff] to believe that the allegations are true”)(internal quote marks and citation omitted). First, Plaintiffs’ allegations are general and do not include allegations of facts to show who did what. There are several defendants and the lack of specificity makes it impossible to determine who acted, or failed to act. Second, no facts are alleged to show that Defendant’s disregard was despicable rather than negligent – that is, deliberately or calculatedly uncaring rather than lazy or slothful. For example, Plaintiffs appear to acknowledge some repair efforts, albeit unsuccessful from Plaintiffs’ perspective. [See e.g. Complaint, ¶ 13(a)(“ did nothing to legitimately abate,” “failed to properly abate), (c) “failed to properly repair or replace the door”), (e)(“ failed to timely repair or replace these essential appliances”), (f)(“ failed to adequately repair or permanently remedy”), (h)(“ failed to timely repair or replace the system”).] Without the facts of whom Plaintiff communicated with, what that person or persons said and/or did, and who they worked for, it is impossible to assess whether Defendant’s conduct was despicable.
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		Accordingly, the motion to strike is granted as stated above. The court will grant leave for Plaintiffs to bring a motion to amend their complaint to add punitive damages when and if they discover sufficient facts to do so. Defendants are to provide notice of this ruling.
57	<i>Pavlovich vs. General Motors LLC</i>	The Court grants Plaintiff Matthew L. Pavlovich’s unopposed Motion for attorney’s fees against Defendant General Motors LLC (GM) in the amount of \$29,732 in attorney’s fees and \$704.49 in costs. <u>Prevailing Party</u> GM agreed, via the Release Agreement, reasonable attorney’s fees, costs, and expenses were to be determined by the court by way of a noticed motion. Specifically, the terms of the Release Agreement identified Plaintiff as the prevailing party for purposes of any fee motion. (Reza Decl., ¶15.) <u>Lodestar Calculation</u> Civil Code section 1794, subdivision (d) requires the attorney fees to be based on “actual time expended” and to have been “reasonably incurred.” In <i>Robertson v. Fleetwood Travel Trailers of California, Inc.</i> (2006) 144 Cal.App.4th 785, 818–819, 820, the court concluded, “the statutory language of section 1794, subdivision (d), is reasonably compatible with a lodestar adjustment method of calculating attorney fees” because “the lodestar adjustment method is based on actual, reasonable attorney time expended as

	the objective starting point of the analysis [citation], it is compatible with this statutory provision.” The court reasoned that the lodestar method is applicable to calculating attorney fees under section 1794, subdivision (d) because “the lodestar adjustment method is the prevailing rule for calculation of statutory attorney fees unless the statute expressly indicates a contrary intent, and no such contrary intent is apparent.” (<i>Id.</i> at 821; <i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 997 (<i>Doppes</i>).) The lodestar adjustment method requires the trial court first to determine a lodestar figure based on actual time spent and reasonable hourly compensation for each attorney. (<i>Robertson</i>, 144 Cal.App.4th at 819, citing <i>Serrano v. Priest</i> (1977) 20 Cal.3d 25, 48–49.) For Song–Beverly Consumer Warranty Act claims, “[a] prevailing buyer has the burden of ‘showing that the fees incurred were “allowable,” were “reasonably necessary to the conduct of the litigation,” and were “reasonable in amount.”’ (<i>Nightingale v. Hyundai Motor America</i> (1994) 31 Cal.App.4th 99, 104; <i>Doppes</i>, 174 Cal.App.4th at 998.) The court then has the discretion to increase or decrease the lodestar figure by applying a positive or negative multiplier based on a variety of factors that the court did not consider when determining the lodestar figure, such as the novelty and difficulty of the issues presented, the extent to which the nature of the litigation precluded other employment by the attorneys, and the contingent nature of the fee award. (See
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	<i>Northwest Energetic Servs., LLC v. California Franchise Tax Bd.</i> (2008) 159 Cal.App.4th 841, 879-82; <i>Graciano v. Robinson Ford Sales, Inc.</i> (2006) 144 Cal.App.4th 140, 154.) The court is not required to impose a multiplier; the decision is discretionary. (<i>Galbiso v. Orosi Pub. Util. Dist.</i> (2008) 167 Cal.App.4th 1063, 1089; <i>Nichols v. City of Taft</i> (2007) 155 Cal.App.4th 1233, 1241.) On a motion for attorney's fees, the moving party has the burden of: (1) establishing entitlement to an award, and (2) documenting the appropriate hours expended and hourly rates. (<i>ComputerXpress, Inc. v. Jackson</i> (2001) 93 Cal.App.4th 993, 1020.) It is moving party's burden of proof to show the fees they incurred and that the fees were reasonably incurred. (See <i>Christian Research Institute v. Alno</i> (2008) 165 Cal.App.4th 1315, 1320; <i>Maughan v. Google Tech., Inc.</i> (2007) 143 Cal. App. 4th 1242, 1254.) <u>Reasonable Rates</u> The reasonable market value of the attorney's services is the measure of a reasonable hourly rate. (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1094.) This standard applies regardless of whether the attorneys' claiming fees charge nothing for their services, charge at below-market or discounted rates, represented the client on a straight contingent fee basis, or are in house counsel. (<i>Id.</i>) To determine that reasonable market value, the court must determine whether the requested rates are within the range of reasonable rates charged by and judicially awarded to comparable attorneys for comparable
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	work. (<i>Children’s Hospital & Medical Center v. Bonta</i> (2002) 97 Cal.App.4th 740, 783.) Factors that may be considered in determining whether counsel’s rates are reasonable include level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney’s reputation, and the undesirability of the case. (<i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1139.) The party requesting fees has the initial burden of producing sufficient evidence to support the reasonableness of the billing rates requested. (See <i>Davis v. City of San Diego</i> (2003) 106 Cal.App.4th 893, 903.) If the moving party meets its burden, the burden shifts to the opposing party to produce admissible evidence sufficient to show that the rates requested are not reasonable. (See <i>Graciano v. Robinson Ford Sales, Inc.</i> (2006) 144 Cal.App.4th 140, 155 [finding court erred in reducing rates where evidence of reasonableness of rate requested was undisputed]; <i>Davis v. City of San Diego</i>, 106 Cal.App.4th at 904.) Here, Plaintiff’s Counsel has met their burden to show that the rates requested are reasonable. Based on the court’s experience with these types of cases and in the legal community, the court finds the hourly rate to be reasonable. <u>Reasonable Hours Spent</u> “Civil Code section 1794 ‘requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the
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	amount of actual time expended and the monetary charge being made for the time expended are reasonable.’ ” (<i>Morris v. Hyundai Motor America</i> (2019) 41 Cal.App.5th 24, 34 [cleaned up internal quotations].) “A prevailing buyer has the burden of showing that the fees incurred were ‘allowable,’ were ‘reasonably necessary to the conduct of the litigation,’ and were ‘reasonable in amount.’ ” (<i>Ibid.</i> [cleaned up internal quotations].) “In evaluating whether the attorney fee request is reasonable, the trial court should consider ‘ “ whether the case was overstaffed, how much time the attorneys spent on particular claims, and whether the hours were reasonably expended.’ ” (<i>Morris v. Hyundai Motor America</i> (2019) 41 Cal.App.5th 24, 38.) “Reasonable compensation does not include compensation for ‘ “padding” in the form of inefficient or duplicative efforts....’ [Citations.] “A reduced award might be fully justified by a general observation that an attorney overlitigated a case or submitted a padded bill or that the opposing party has stated valid objections.” ’ ” (<i>Ibid.</i>) “[V]erified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.” (<i>Horsford v. Board of Trustees of California State University</i> (2005) 132 Cal.App.4th 359, 396.) Here, the Court has examined the time records provided by Plaintiff’s Counsel. The Court deducts for administrative tasks. The Court also
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		does not include the anticipated review of the opposition and drafting of the reply as to this Motion, as no opposition or reply was filed. <u>Multiplier</u> Plaintiff argues that a multiplier of 0.3 should be applied to the fee recovery in this case. The trial court is afforded wide discretion to adjust a fee award either downward or upwards depending on the specific circumstances of each case. (See <i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1138.) It is also permissible for the trial court not to adjust the lodestar at all. (<i>Ibid.</i> [“Of course, the trial court is not <i>required</i> to include a fee enhancement to the basic lodestar figure for contingent risk, exceptional skill, or other factors, although it retains discretion to do so in the appropriate case...”].) Here, the Court declines to modify the lodestar figure. The issues of success, difficulty, and skill of Plaintiff’s attorneys is accounted for in the finding that the hours spent working on this case were reasonable. The relatively high hourly rates and the plaintiff-slanted framework of the Song-Beverly Act more than account for any contingent risk, public benefit of representing Plaintiff, and delay in payment of fees here. <u>Costs</u> Finally, no timely motion to strike or tax costs was filed. Thus, the amount of \$704.49 requested in the Memorandum of Costs is granted.
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		Plaintiff is ordered to serve notice of this ruling.
58	<i>Robles vs. The Regents of the University of California</i>	Defendant The Regents of the University of California (“UC Regents”) Motion for Summary Judgment is denied. UC Regents’ evidentiary objections are overruled. UC Regents moves for an order granting summary judgment on the sole cause of action for professional negligence in Plaintiff Edmond Robles’ (“Robles”) Complaint on the grounds that there are no triable issues of material fact because UC Regents met the standard of care at all relevant times with respect to Robles. <u>Summary Judgment Standard</u> “[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . .” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i> at p. 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The scope of this burden is determined by

	the material allegations of the plaintiff's complaint. (<i>Huntsman-West Foundation v. Smith</i> (2024) 104 Cal.App.5th 1117, 1132.) Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (<i>Aguilar v. Atlantic Richfield Co., supra</i>, 25 Cal.4th at p. 850.) To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. (<i>Sangster v. Paetkau</i> (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (<i>Doe v. Salesian Society</i> (2008) 159 Cal.App.4th 474, 481; <i>Bushling v. Fremont Med. Center</i> (2004) 117 Cal.App.4th 493, 510.) <u>Medical Negligence</u> “The elements of a cause of action for medical malpractice are: (1) a duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise; (2) a breach of the duty; (3) a proximate causal connection between the negligent conduct and the injury; and (4) resulting loss or damage.” (<i>San Antonio Regional Hospital v. Superior Court</i> (2024) 102 Cal.App.5th 346, 350, citing <i>Johnson v. Superior Court</i> (2006) 143 Cal.App.4th 297, 305.) “The first element, standard of care, is the key issue in a malpractice action and can only be proved by expert testimony, unless the circumstances are such that the required conduct is within the layperson's common knowledge.”
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	(<i>Ibid.</i>, citing <i>Lattimore v. Dickey</i> (2015) 239 Cal.App.4th 959, 968.) “Proving the third element, causation, also requires “ ‘competent expert testimony.’ ” (<i>Ibid.</i>, <i>Miranda v. Bomel Construction Co., Inc.</i> (2010) 187 Cal.App.4th 1326, 1336.) “An expert declaration is admissible to support or defeat summary judgment if the expert’s testimony would be admissible at trial in accordance with Evidence Code section 720.” (<i>Bozzi v. Nordstrom, Inc.</i> (2010) 186 Cal.App.4th 755, 761.) Per Evidence Code section 720, “[a] person is qualified to testify as an expert if he has special knowledge, skill, experience, training, or education sufficient to qualify him as an expert on the subject to which his testimony relates.” (Evid. Code, § 720, subd. (a).) The expert declaration must disclose the matters relied on in forming its opinion. (See <i>Kelley v. Trunk</i> (1998) 66 Cal.App.4th 519, 524.) Here, Robles does not dispute that his negligence claim is based on his allegations that UC Regents’ personnel acted negligently “by failing to position the patient prior to the subject surgery, and that during the surgery Defendant’s personnel failed to provide appropriate positioning, repositioning, and/or padding to ensure that the patient’s nerves were not damaged during the surgery.” (ROA 65 [Undisputed Fact (“UF”) no. 3].) Robles also does not dispute that he was “periodically assessed” following the procedure and up until the time of his discharge; and, that “the nursing staff properly monitored [him] following the surgery.”
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	(UF no. 10.) However, Robles disputes whether he was properly positioned, and re-positioned, during the approximately 7-hour procedure, including because there is “no documentation regarding the angle of the patient’s arms, creating ambiguity around possible brachial plexus injury.” (Disputed Facts nos. 4-8.) In support of its motion, UC Regents submitted a declaration from its expert, Connie Miranda, R.N. (ROA 31—Exh. F [Miranda Decl.]) Miranda opined, among other things, that Robles was, “properly positioned prior to the commencement of the December 29, 2023, surgery.” (Miranda Decl. at ¶ 9) In opposition, Robles provided a declaration from his expert, Alexis Chauldron, Ed.D., R.N. (ROA 63—Exh. 1 [Chauldron Decl.]) Chauldron states that UC Regents did not adhere to the applicable standard of care because, among other reasons, the Association of Perioperative Registered Nurses (AORN) Guidelines for Perioperative Practice (“AORN”) (2023) provides, “if a patient’s arms are extended during surgery, that they be extended less than 90 degrees, to reduce the risk of brachial plexus injuries.” Chauldron opines that, “in this case, the patient’s arms were extended during the procedure, but there was no documentation regarding the angle of the patient’s arms, creating ambiguity around possible brachial plexus injury. Standard perioperative guidelines advise limiting arm abduction to minimize nerve injury. There was no documentation regarding the angle in which the
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	patient's arms were positioned." (Chauldron Decl. at ¶ 10) On reply, UC Regents argues that Chauldron "does not dispute the standard of care opinions of [its] expert," and that all Chauldron has done is opined that UC Regents "breached the standard of care with regard to charting." But, the "charting could not have caused an injury to the patient and Plaintiff's expert's criticisms of Defendant's record keeping doesn't provide evidence of, or a basis for, the expert's standard of care opinions." (Reply at pp. 1-2.) The Court does not find UC Regents' argument to be persuasive, because UC Regents did not make an initial showing that Robles' arms were properly positioned for surgery, such that the burden now shifts to Robles to show that his arms were not properly positioned. While there appears to be no dispute that the actions that were notated as having been performed were within the standard of care, it has not been established that there is no triable issue of fact as to whether Robles' arms were properly positioned for the surgery in the first instance. Further, nothing in Miranda's declaration suggests that the positioning of the arms could not be the cause of the alleged nerve injury, i.e., that there is no proper or improper positioning of the arms that could result in a nerve injury. To the contrary, it can be inferred from Miranda's testimony that "proper positioning" is a factor to be considered. Accordingly, the motion is denied.
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		Plaintiff shall give notice of the ruling.
59	<i>Ruiz vs. Grupo Frontera</i>	The Court overrules “Specially appearing” Defendants Grupo Frontera LLC, Juan J. Cantu, and Alberto Acosta’s Demurrer to Plaintiff Victor Hugo Ruiz III’s Complaint. Defendants argue that Plaintiff’s claims have been released and attach as Exhibit A to the Memorandum of Points and Authorities the purported “Termination and Release Agreement”. Defendants then argue that on December 31, 2023, Plaintiff executed a Termination and Release Agreement. Defendants ask for judgment on the merits of the Release. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) First, the Release is not authenticated and is attached without any testimony that it is what it purports to be. Rather, it is just affixed to the end of the Demurrer. Second, even if Defendants had requested judicial notice of the Release, it would have been denied. The court may not take judicial notice of the existence of a contract between private parties. (<i>Gould v. Maryland Sound Indus., Inc.</i> (1995) 31 Cal.App.4th 1137, 1145.) Rather, release is an affirmative defense that must be pleaded. (<i>Anderson v. Fitness Internat.,</i>

	<i>LLC</i> (2016) 4 Cal.App.5th 867.) A hearing on a demurrer generally cannot be turned into a contested evidentiary hearing under the guise of judicial notice of contested or controverted documents. (<i>Tucker v. Pacific Bell Mobile Services</i> (2012) 208 Cal.App.4th 201, 219, fn. 11.) Thus, the Demurrer is overruled. Defendants are ordered to answer the Complaint within 15 days. Defendants indicate in their Demurrer that they are “specially appearing.” The determination of special appearance versus general appearance is based on the “character of the relief sought,” not by statements of intention of the party. (<i>Slaybaugh v. Superior Court</i> (1977) 70 Cal.App.3d 216, 221; <i>In re D.R.</i> (2019) 39 Cal.App.5th 583, 593.) The Court finds that Defendants have generally appeared. They ask for judgment on the merit of the Complaint based on the affirmative defense of release. While they argue on Demurrer that Texas has exclusive jurisdiction, there is no separate Motion challenging jurisdiction. (CCP § 418.10(e).) A defendant makes a general appearance in an action by filing a demurrer and thereby submits to the court's personal jurisdiction. (CCP § 1014; <i>Jarvis v Jarvis</i> (2019) 33 Cal.App.5th 113, 127 (defendant waives any defects in service by filing demurrer); <i>Sunrise Financial, LLC v. Superior Court</i> (2019) 32 Cal.App.5th 114, (“If an appearance is for any purpose other than to
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		question the jurisdiction of the court, it is general”); See <i>Global Financial Distributors Inc. v. Superior Court</i> (2019) 35 Cal. App. 5th 179, (“the Legislature enacted [CCP] section 418.10 to permit a defendant specially to challenge the court's personal jurisdiction without waiving his right to defend on the merits by allowing a default to be entered against him while the jurisdictional issue is being determined”). Here, Defendants demur and ask for judgment in their favor on the Complaint: “Plaintiffs Complaint seeks damages exceeding \$2.6 million for alleged breaches of the management relationship that the Release terminates and settles. The Complaint does not acknowledge the Release or explain how Plaintiffs claims can coexist with his execution of a document that expressly releases all such claims. For the reasons set forth herein, Defendants respectfully request that this Court sustain the Demurrer to all three causes of action, thereby dismissing the Complaint in its entirety with prejudice.” (Notice of Motion, p. 2:4-9.) Thus, Defendants have made a general appearance and must now answer the Complaint. Defendants are ordered to serve notice of this ruling.
60	<i>Off calendar</i>	
61	<i>Todo vs. Simplilearn Americas, Inc.</i>	Attorney Stephanie Colorado’s Application for admission pro hac vice is GRANTED. Moving party to provide notice of this ruling.

